

Mukesh Pratap Singh (Chauhan) v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 December 2019 · Writ-C No. 39057 of 2019 · **Writ disposed; relegated to Clause 6.5 on deposit of Rs 1 lakh, with conditional restoration and stay of remaining recovery.**

HEADNOTE

A consumer challenging an electrical-dues recovery on the footing that the bill is incorrect must take the statutory objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005; a writ is not entertained where that remedy is available. The petition was disposed of with a direction to apply under Clause 6.5 within ten days after depositing Rs 1 lakh, upon which supply was to be restored and recovery of the balance stayed until a speaking order after hearing, and the pending Consumer Forum application was to be withdrawn.

FACTUAL SUMMARY

The petitioner challenged a recovery dated 19 August 2019 issued under section 3 of the U.P. Government Electrical Dues Recovery Act, 1958 for Rs 3,69,592 plus collection and notice charges, and sought a stay of recovery until his application dated 18 November 2019 before the Consumer Forum, Mainpuri, was heard. He disputed the correctness of the electricity bill. Counsel for the Electricity Department appeared.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — statutory remedy under Clause 6.5

HOLDING

A writ against an electrical-dues recovery founded on a dispute as to correctness of the bill will not be entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory remedy. The petitioner was directed to approach the Clause 6.5 authority within ten days after depositing Rs 1 lakh; on that deposit the connection was to be restored immediately and recovery of the balance stayed until a speaking order after hearing, and the pending Consumer Forum application was to be withdrawn. ¶ 1

PRINCIPLE TAGS

bill-correctness-under-clause-6.5-not-cgrf-or-ombudsman The petitioner had already moved the Consumer Forum, Mainpuri, on the same billing and recovery dispute; the Court required that application to be withdrawn and the objection to be pursued under Clause 6.5 instead of the writ or the Forum. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILLED AMOUNT AND VALIDITY OF THE RECOVERY DATED 19.8.2019

Left to the Clause 6.5 authority to decide by a speaking order after hearing. ¶ 1